

23STCV27995 23STCV27995

County: los-angeles

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Department: 516

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Case Number: 23STCV27995 Hearing Date: June 29, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: June 29, 2026

Case Name: Tyson,

et al. v. Crown Tear Off & Disposal, Inc. a California corporation, et al.

Case No.: 23STCV27995

Matter: Motion for

Leave to file a Cross-Complaint

Moving Party: Defendant

Universal Protection Service, LP doing business as Allied Universal Security Services

Responding

Party: Plaintiffs James Santiago

Anguiano, Jr., Maria Anguiano, and Raylene Anguiano

Tentative

Ruling: Defendant Universal

Protection Service, LP, doing business as Allied Universal Security Services' motion for leave to file a Cross-Complaint is granted.

Plaintiffs

James Santiago Anguiano, Jr. ("Decedent"), deceased by and through his successor-in-interest Raylene Anguiano, Maria Anguiano, an individual, and Raylene Anguiano by and through her guardian ad litem Gian Sandoval (collectively "Plaintiffs") filed this action against Defendants Edith Chin, Edith Chin Trust, Sequoia Trust, and Universal Protection Services, LP doing business as Allied Universal Security Services ("Allied") (collectively "Defendants"). The Second Amended Complaint ("SAC") alleges two causes of action against Defendants for: (1) negligence, and (2) premises liability. The SAC alleges that on June 12, 2022, Plaintiff was shot by Joshua Dunbar, with a gun issued to Dunbar by UPS ("Subject Incident").

Allied

moves for leave to amend to file a Cross-Complaint for equitable indemnity contribution against Plaintiffs. Plaintiffs oppose.

Legal Standard

A

cross-complaint against any of the parties who filed the initial complaint or cross-complaint against the cross-complainant must be filed before or at the same time as the answer to the initial complaint or cross-complaint, which answer must be filed within 30 days of service of the complaint or cross-complaint.¿(Code Civ. Proc., §§ 412.20, subd. (a)(3), 428.50, subd. (a), 432.10.)¿Any other cross-complaint may be filed at any time before the court has set a trial date.¿(Code Civ. Proc., §428.50, subd. (b).)

"Any cause

of action he has against any of the parties who filed the complaint or cross-complaint against him." (Code Civ. Proc., § 428.10, subd. (a).) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint "(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).) If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (Code Civ. Proc., § 428.50, subd. (c).)

Analysis

Allied

moves for leave to amend to file a Cross-Complaint for equitable indemnity contribution against Plaintiffs.

Allied

argues that leave to file a Cross-Complaint against Plaintiff is warranted in the interest of justice. Allied argues that, based on evidence disclosed in November 2025, it learned that the bullet that struck Tyson was from Decedent's gun. (Supp. Medellín Decl., ¶ 3.) Moreover, the Plaintiffs will not suffer prejudice if Allied is granted leave to file its Cross-Complaint because Plaintiffs have been aware of this fact before Allied was named in their action. Furthermore, Allied's Answer asserted the following defenses for comparative liability of third party, and proximate causation of others. (Answer, 3:13-28.)

In

opposition, Plaintiffs argue that leave to file its Cross-Complaint should be denied because Allied has an unexplained and unreasonable delay in seeking leave. The Court is not persuaded by Plaintiff's argument. As addressed above, Allied obtained access to the facts supporting its Cross-Complaint in November 2025; thus, the Court does not find this an unreasonable delay.

Plaintiffs

also contend that they will be prejudiced if Allied is granted leave to file its Cross-Complaint, because the Cross-Complaint will expand the issues, disrupt trial preparation, and give Allied an unfair tactical advantage. However, the Court is not persuaded by Plaintiff's arguments. First, the Cross-Complaint will not expand issues, because Plaintiffs were put on notice of Allied's affirmative defenses, and had access to the evidence that the bullet that hit Tyson came from Decedent's gun. Second, while the trial is set for November 2, 2026, indemnity does not require additional discovery, but if it does, the parties still have time to conduct it. Additionally, Plaintiffs do not present the Court with actual issues; instead, they offer only general arguments. Third, as addressed in this ruling, there is no tactical advantage on behalf of Allied because Plaintiffs have access to all the information before Allied.

Thus, the
Court grants Allied's motion for leave to file its Cross-Complaint.

Conclusion

Universal
Protection Service LP, doing business as Allied Universal Security Services'
motion for leave to file its Cross-Complaint is granted.

Universal
Protection Service LP, doing business as Allied Universal Security Services,
shall file and serve its Cross-Complaint by July 10, 2026.